HR CORPORATE PROCEDURES

Behaviour in the Workplace

Date Adopted: **26 July 2017**
Date Amended/Reviewed:
Responsible Officer: **Human Resources Manager**
Authorised: **Chief Executive Officer**
Signed:

1. Purpose and Introduction

This procedure applies to all staff, labour hire workers, contractors, subcontractors, apprentices, trainees, work experience students and volunteers of the City of Armadale and outlines the City's expectations in regard to appropriate workplace behaviour. It elaborates on the City's Code of Conduct, particularly section 7.1 – *Personal Behaviour*. It should be read in conjunction with *HR Corporate Procedure: Equal Employment Opportunity and Diversity Principles – Providing good working relationships* and *Management Practice ADM 16: Equal Employment Opportunity*.

The intent of this procedure is to assist in recognising workplace behaviour or conduct that is not appropriate and to provide a guide on how to address any unacceptable behaviour. It aims to develop and promote productive and respectful workplace relationships.

2. Requirement for Appropriate Workplace Behaviours

All workers are entitled to be treated with dignity and respect. Each individual is accountable for ensuring that their behaviour is professional and appropriate and this includes treating others fairly, equitably and with proper courtesy and consideration.

Managers and supervisors have a responsibility to deal with unacceptable workplace behaviour. They should respond in a timely manner to any instances or complaints of unacceptable workplace behaviour. Acting quickly to resolve workplace issues can be critical in the overall effectiveness of action taken. Allowing unacceptable behaviours to continue condones the behaviour and sends a message to others that the behaviour is acceptable. Overtime this may result in a negative impact on the culture of a team or organisation.

It is expected that:

- **Honesty, Accountability, Respect, and Professionalism** (the City's Values) should underpin all interactions and communication between all people: employees, contractors, volunteers, elected members, committee members, customers and visitors to the City.

- People will exercise a duty of care to protect the reputation of themselves and others and to uphold the reputation of the City.
- People will not engage in conversation and speculation about other people (gossip), as it has the capacity to be destructive to; individuals, workplace morale and positive working relationships.
- Supervisors and managers prevent or minimise unacceptable behaviour in the workplace and take action to resolve reports or complaints.
- Supervisors and managers ensure that anyone who makes a report, or is otherwise involved, is not victimised.

The City is obliged to take action when it becomes aware of unacceptable behaviour which may risk the health and/or well-being of staff.

3. Unacceptable Behaviour

Unacceptable behaviour may involve actions, words or physical gestures that could reasonably be perceived to be the cause of another person's distress or discomfort. Unacceptable behaviour does not necessarily have to be face-to-face. It may take many forms such as written, telephone or e-mail communications, or through social media.

3.1 Examples of Unacceptable Behaviour

Behaviours considered unacceptable by the City of Armadale include, but are not limited to, the following:

- Use of aggressive, insulting, offensive or abusive language.
- Threats of violence or physical abuse.
- Teasing, name calling or putting people down, or making them the brunt of practical jokes or pranks.
- Deliberately excluding individuals from workplace activities or withholding information that is vital for effective work performance.
- Malicious or mischievous gossip or complaints.
- Abusive or harassing notes, emails, telephone calls, text messages, etc. during or after working hours.
- Belittling opinions or constant unproductive criticisms.
- Unwelcome comments about a person's personal life.
- Offensive jokes or comments about sexual preference, or a person's race, disability, pregnancy, age, religion, political convictions, marital status, gender or physical appearance.
- Unwelcome physical contact, including that of a sexual or a threatening nature.
- Unsafe work practices or behaviour which may harm oneself or others.
- Theft or misuse of City of Armadale resources, equipment or assets.
- Displaying, viewing, sending or receiving offensive materials such as pornography.
- Being under the influence of illicit drugs or impaired by alcohol.
- Unauthorised absence from duty.
- Any form of bullying, harassment or intimidation.

3.2 Bullying

Workplace bullying is not only unacceptable behaviour it is also a risk to health and safety because it may affect the mental and physical health of workers. The City has a duty of care to provide and maintain a work environment which is comfortable, safe and harmonious. Defined under work health and safety legislation, workplace bullying is *repeated, unreasonable or inappropriate behaviour* directed towards a worker or a group of workers that creates a risk to health and safety.

Repeated behaviour refers to the persistent nature of the behaviour and can involve a range of behaviours over time.
Unreasonable behaviour means behaviour that a reasonable person, having considered the circumstances, would see as unreasonable, including behaviour that is victimising, humiliating, intimidating or threatening.

Bullying can be directed at a single worker or a group of workers and might be carried out by one or more workers. It can occur:

- **Downwards** (from managers or supervisors to workers),
- **Sideways** (between workers) or
- **Upwards** (from workers to supervisors or managers)

Workplace conflict is not workplace bullying. Differences of opinion and disagreements do occur from time to time and may cause a person to feel upset or uncomfortable, but it is not defined as bullying if it is not repeated and unreasonable or if it falls under *Reasonable Management Action.*

4. Reasonable Management Action

Managers and supervisors have rights and obligations to take reasonable management action and make appropriate management decisions. They need to be able to effectively direct and control the way work is carried out, respond to poor performance and, if necessary, take disciplinary action. In doing so, managers and supervisors are not 'bullying', but undertaking their roles through reasonable and lawful direction of an employee's performance and/or behaviour.

Examples of reasonable management action include:

- Setting reasonable performance goals, standards and deadlines.
- Rostering and allocating working hours where the requirements are reasonable.
- Reasonable allocation or re-allocation of work.
- A decision by the employer, based on reasonable grounds, not to award or provide a promotion, transfer, or benefit in connection with an employee's employment.
- Informing a worker about unsatisfactory work performance in an honest, fair and constructive way.
- Ongoing meetings to address underperformance.
- Investigating alleged misconduct.
- Counselling or disciplining an employee for misconduct.
- Implementing organisational changes or restructuring.
- Modifying an employee's duties including transferring or redeploying the employee.

- Refusing an employee permission to return to work due to a medical condition, when a Doctor has not provided medical evidence to state the employee is fit to return to pre-injury/illness duties.

5. Dealing with Unacceptable Workplace Behaviour

Depending on the seriousness of the behaviour or complaint, the matter may be dealt with informally or formally. The below indicates scenarios for when informal or formal processes might apply.

Informal Process

The Informal process is designed for quick problem solving rather than investigating and substantiating claims. The objective is to identify the inappropriate behaviour and develop a shared understanding of how to avoid problems in the future. Some informal solutions can be reached without a complaint being made, particularly if the inappropriate behaviours is witnessed by the Supervisor. Sometimes a conversation to make a person aware that their behaviour is not appropriate in the workplace is all that is required to resolve a situation.

This process should be followed if it is a single incident, if the behaviour is thought to be unintentional, or if it can be resolved simply between the parties involved, creating minimal disruption to the team. The Supervisor is to establish what happened by talking to the parties concerned, determine what behaviour needs to change, bring the parties together to discuss how to move forward, document what has been agreed and monitor to ensure the agreement is maintained.

If the actions taken do not achieve the desired results any party involved may escalate to the next stage of the procedure.

The records of the steps taken by the Supervisor may be required if the matter escalates to a formal investigation.

Formal Process

A formal process (as detailed in point six below) should be followed when informal processes have failed to resolve the issue, if the behaviour is serious (even if it is a single incident), or if the behaviour has been ongoing for some time.

It should be noted that if the complaint is of a serious nature, or if it poses a risk to the health and safety of an individual(s), the HR Manager may recommend, to the CEO (without consent of the complainant) that a formal investigation be implemented forthwith. During an investigation, the investigator will interview all parties involved, or witnesses to the events. If the situation involves an allegation of serious misconduct, the employee may be suspended whilst the investigation is underway. A report with recommendations will be presented to the HR Manager and the CEO will make the final decision on the course of action required. This may result in disciplinary action (including termination) being taken.

6. Complaints Process

The below guide is based on the process of the City's general Grievance Procedure found within section 7 of the HR Corporate Procedure: Equal Employment Opportunity and Diversity Principles – Providing good working relationships. At any step in this process, an employee is welcome to contact their HR representative for advice and/or guidance.

The process is summarised in four steps below;

Step 1: The complainant is encouraged to first talk to the person to responsible for the behaviour. This action should be taken if the staff member is comfortable with interacting directly with the person responsible for the behaviour.

Step 2: If this is difficult or if the problem is not resolved, the person should report their grievance to their direct supervisor or manager. If the grievance cannot be resolved at this level, the supervisor or manager shall, within three days, refer the matter to the Executive Director. The Executive Director is expected to act upon the matter within 1 week.

Step 3: If the complainant is dissatisfied with the outcome, the EEO Coordinator (HR Manager) should be contacted. Depending on the nature of the grievance, the EEO Coordinator may decide on mediation, conciliation or a formal investigation as the next course of action.

Step 4: If after the above steps, the complainant is still unhappy with the outcome, they may wish to contact;

- Equal Opportunity Commission (when grievance relates to EEO)
- Worksafe or FairWork Commission (when matter relates to bullying or safety matter).

It is important to remember that during the process of any complaint handling or investigation, procedural fairness must be applied. This means that:

- an investigator or decision maker must be free from bias
- the employee whom a complaint is raised against must be given the opportunity to respond to any adverse information or allegations against them
- findings are based on evidence and not hearsay, or determined on the facts proved on the balance of probabilities.

7. Confidentiality

Members of staff involved in any proceedings taken under this procedure are expected to ensure that confidentiality of the details of the proceedings are maintained. Any investigations carried out shall be undertaken with discretion and all parties will be made aware that they must treat any information shared during the course of any proceedings as confidential.

8. When does this Procedure apply?

This procedure applies to all work-related situations including, (but not limited to)

- in the workplace, whether during or outside normal working hours;
- at work-related events, including but not limited to conferences and social functions.
- during work activities, including but not limited to dealings with colleagues, elected members and customers whether on or off-site, whether face to face or using information systems or social media forums; and/or
- outside of working hours especially in regard to personal use of social media platforms (refer Guidelines for Personal Use of Social Media).

9. More information

Internal:

Guidance and/or further clarification should be sought from the Human Resources department.

External:

Worksafe: 1300 307 877
www.commerce.wa.gov.au/worksafe

Fair Work Commission
www.fwc.gov.au

Fair Work Ombudsman: 13 13 94
www.fairwork.gov.au